



REQUEST FOR QUOTATION

NSN: 5130-01-670-1106

PLEASE COMPLETE ALL SECTIONS IN YELLOW:

1. Offeror Information:

Legal Business Name		Contact Name and Title	
Address		Email	
Phone		UEI	
Business Type	☐ Manufacturer ☐ Dealer	Business Size	☐ Large ☐ Small

2. Requirement Details

NSN/Part Number	5130-01-670-1106	QTY	100	Requested DARO	30 days
Small Business Set-Aside	Yes <u>No</u>	Requirement Type	<u>Generic</u> Brand Name Brand Name or Equal		
Delivery Zip Code	07305-4501				
NAICS	333991				

HAMMER, ROTARY, ELECTRIC, PORTABLE

NSN Description:

Overall Length: 13.75 inches (+/- 1 inch)

Size: 1.125 inches

Voltage Rating: 20 VDC

Amperage: 9 AMP min

Handle Type: Closed D

Throttle Type: Trigger

Shank Type: SDP Plus

Speed: Variable

Maximum No Load Speed Rate: 1,000 RPM min

Maximum Impact Rate: 4,400 BPM min

Weight: 8.5 LBS max

Case: Plastic with retention feature securing contents when not in use and while in transit.

Features: 3 Operating modes: Drill only, Hammer only, Hammer/Drill; Reversible; 360-degree auxiliary side handle

Accessories: 360-degree Auxiliary side handle, Depth rod, Battery Charger, 2 Batteries

KEY FIELDS:

EXCEPTION(S) TO TECHNICAL DOCUMENT

In accordance with Aerospace Standard AS6228 policies and procedures. Vibration threshold shall be equal to or less than 7.5 m/s² allowing for a tolerance of plus 0.1 m/s² when measured in accordance with internal references found in section 2. Marking and labeling requirements are found in sections 3.1.3 through 3.1.5.

ITEM MARKING

Each item Shall Be Marked in a Permanent and Legible Manner with:

- 1) Manufacturer's Part Number
- 2) Manufacturer's Name or Identifying Symbol, and
- 3) Country of Origin

Each Package including the unit, single, intermediate, and exterior container must be labeled with the requisition number or Transportation Control Number (TCN). Requisition Number and TCN are found on the Purchase Order.

PACKAGING

One (1) item shall be preserved and packaged in a unit package designed to protect the item against damage during shipment, handling, and storage.

MARKING

In general, unless otherwise specified by the contracting officer, marking of shipments shall be in accordance with the GSAM provision/ Clause 552.211-73, marking. In more detail: Marking of supplies for deliveries to domestic civilian activities shall comply with the latest edition of Federal Standard 123. That is, unit, intermediate, and transport packages shall be marked directly on the side surface of the package or on a label affixed to the package, with the identification marking as specified in the standard. Transport packages shall also have, in addition to the identification marking, a shipping label that includes the purchase order, contract, or the requisition numbers; as applicable, including the consignor and consignee names (i.e. ship from/ to) gross weight, cube and piece number.

Marking of supplies for deliveries to civilian activities, export locations, including commercial freight forwarders and third party logistics providers, and excluding freight entering the Defense Transportation System, shall be the same as deliveries to domestic locations except that the shipping label shall show on the same label, or another label affixed next to the shipping label, the ultimate consignee (i.e. Mark for AAC).

Marking of supplies for deliveries to domestic military activities shall comply with the latest edition of Military Standard 129. That is, unit, intermediate, and exterior or shipping containers shall be marked directly on the side surfaces of the package or on a label affixed to the package, with the identification marking as specified in the standard. Exterior or shipping containers shall also have, in addition to the identification marking, a Military Shipping Label (MSL) per the standard.

Marking of supplies for deliveries to military activities, export locations, including forwarding and container consolidation points (CCPs) shall be the same as deliveries to domestic locations except that the MSL must also show the ultimate consignee (Mark for DoDAAC) and the Transportation Control Number (TCN).

"Latest version" is defined as the version in effect on the date of bid submittal. Federal Standards and Military Standards can be accessed on-line via the Defense Logistics Agency's "Assist" Quicksearch web site:
<http://quicksearch.dla.mil/>

PACKAGING/ PACKING

Unless packaging in accordance with MIL-STD-2073-1 Standard Practice for Military Packaging is specified in the solicitation, contract or order, packaging/ packing of supplies, exclusive of hazardous material, for domestic and export shipments to civilian and military activities shall comply with GSAM Provision/ Clause 552.211-75 Preservation, Packaging and Packing which references the National Motor Classification Standard (NMFC) and/ or the latest requirements of ASTM D-3951, Standard Practice for Commercial Packaging. Until the commercial packaging/ packing requirement in GSAM Clause 552.211-75 is revised, compliance to either the GSAM clause or the ASTM D-3951, Standard Practice for Commercial Packaging will be acceptable; however, compliance to the ASTM requirements is mandatory for GSS contracts and is preferred for all other contracts. In case of conflict between the GSAM clause and the revision of ASTM D-3951, the ASTM requirement shall govern.

Packaging of hazardous material (HM) supplies for shipments shall comply with the GSAM provision/ Clause 552.223-73, Preservation, Packaging, Packing, Marking and Labeling of Hazardous Materials (HAZMAT) for Shipments. That is, packing of HM for domestic shipments shall comply with the latest versions of DOT HMR in 49 CFR, parts 171-180, and OSHA HCS in 29 CFR, part 1910.1200.

Packing of HM for export shipments (includes forwarding and container consolidation points, commercial freight forwarders and third party logistics providers) shall comply with the latest versions of DOT HMR in 49 CFR, parts 171-180, and OSHA HCS in 29 CFR, part 1910.1200, and the applicable IMDG, IATA, ICAO, AFMAN-24 standard for the mode of transportation.

WOOD PACKAGING MATERIAL

Packaging and packing of supplies using Wood Packaging Material (WPM) on a pallet or skid for export shipments (includes forwarding and container and consolidation points, commercial freight forwarders and third party logistics providers) shall comply with the requirements in provision/ Clause GSAM 552.211.89, Manufactured Wood Packaging Material for Export or the applicable requirements in ASTM D-3951 relative to the WPM. That is, all wood shall be treated and stamped appropriately for export, including the actual pallet or skid, if made of wood.

PALLETIZATION AND PREPARATION FOR DELIVERY

The item(s) shall be packaged and packed to afford adequate protection against physical damage during shipment from the supplier to the first receiving activity. The pack shall comply with the rules and regulations applicable to the mode of transportation. If pallet or skid is used for shipping, it shall be made in accordance with normal industry standards. In the event a wood pallet or skid is used for shipping, the requirements of GSAM 552.211.89, Non-Manufactured Wood Packaging Material for Export, shall apply.

ITEMS REQUIRING SAFETY DATA SHEETS (SDSs)

Items requiring Safety Data Sheets (SDSs) shall be provided by the contractor as specified in IPD and the FAR Provision/Clause 48 CFR 52.223-3 Hazardous Material Identification and Material Safety Data, and the latest version of Federal Standard 313. One copy of the SDS shall be included inside or affixed to the outside of each transport package. If affixed outside the SDS must be placed in a weather resistant envelope.

Data in all 16 sections of the OSHA HazCom/ GHS standards will be required. HM shall be labeled with an OSHA/ GHS compliant label to include the following data: (1) Product identifier, (2) Signal Word, (3) Hazard Statements, (4) Pictograms, (5) Precautionary Statements, and (6) Chemical Manufacturer, Importer, or Other Responsible Party information.

NOTE: Delivery addresses will either be disclosed at time PO is issued, or the vendor may be required to contact the GSA Transportation Department at dodtransportationrequest@gsa.gov.

3. Offeror's Quote and Terms

Manufacturer				
Part Number				
Type of item quoted	☐ Brand Name	☐ 'or Equal'	☐ N/A	Country of Origin
Price - EA (Discount Requested)			Price - Total	
Price valid through date			Delivery lead time (in days)	
FOB – Please Quote Destination				
Reason if quoted lead time exceeds the request				

4. Offeror Checklist:

☐	Registered with OMS Vendor Portal or EDI to receive orders electronically.
☐	Representations and Certifications are current in SAM.gov.
☐	Signed MIL-STD-129R form is attached to this RFQ submission OR is on file with the InstaQuote Program.
☐	Technical and other relevant specification documents are attached to this RFQ submission.

SELF CERTIFICATION:

By signing below, the Offeror certifies that all submitted information is accurate and that all offered items fully comply with the specifications of the RFQ. The Offeror agrees that any item delivered that does not meet these requirements shall be replaced with a fully compliant item or refunded in full, at the Government's discretion, and that the Offeror is responsible for any related costs incurred by the Government.

Signature: _____ **Date:** _____

A foreign corporation that is selected for the award must have an agent who resides in the United States and a physical address (not a P.O. Box) in the United States prior to award of this order. If you are a foreign corporation, please indicate that you understand this requirement and that you have an agent and a physical address (not a P.O. Box) in the United States. Not providing this assurance in your quote or not having these resources located in the United States will lead to finding your quote noncompliant and it will no longer be considered for award.

Signature: _____ **Date:** _____

5. APPLICABLE TERMS AND CONDITIONS:

This is a combined synopsis/solicitation for commercial items, prepared in accordance with FAR Part 12. This announcement constitutes the only solicitation, and no separate written solicitation will be issued.

- Any order resulting from this RFQ will be issued under the authority of FAR Part 12. Offerors must be registered and active in [SAM.gov](https://sam.gov) prior to award.

- Quoted prices must reflect the Offeror’s best terms, inclusive of all applicable discounts. The Government reserves the right to reject any offer that is non-responsive or fails to comply with this RFQ.

6. **BASIS OF AWARD:**

To be considered for award, offerors must:

- Submit a complete, accurate, and fully compliant quote with all required documentation and completed fields.
- Submit a quote via email with all required documentation by the closing date and time stated in the solicitation.

Note: Offers received after the time specified in the solicitation will be deemed “late”. Acceptance of incomplete or late submissions is solely at the discretion of the Contracting Officer.

APPLICABLE PROVISIONS INCORPORATED BY REFERENCE

52.204-7: System for Award Management—Registration

52.204-7 with Alt I: System for Award Management—Registration, with Alternate I

Name: _____

TIN: _____

(d)

Owner type	CAGE code	Legal business name
Immediate owner		
Highest-level owner		
Predecessor*		

52.212-1: Instructions to Offerors—Commercial Products and Commercial Services.

52.212-2: Evaluation—Commercial Products and Commercial Services.

(a) The following factor will be used to evaluate: Lowest Price Technically Acceptable

52.222-18: Certification Regarding Knowledge of Child Labor for Listed End Products

(a) Definition.

Forced or indentured child labor means all work or service-

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

(b) Listed end products. The following end product(s) being acquired under this solicitation is (are) included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, identified by their country of origin. There is a reasonable basis to believe that listed end products from the listed countries of origin may have been mined, produced, or manufactured by forced or indentured child labor.

Listed end product	Listed countries of origin

- (c) Certification. The Government will not make award to an offeror unless the offeror, by checking the appropriate block, certifies to either paragraph (c)(1) or paragraph (c)(2) of this provision
- (1) ☐ The offeror will not supply any end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in a corresponding country as listed for that end product.
- (2) ☐ The offeror may supply an end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture such end product. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

52.225-1: Buy American-Supplies

52.225-2: Buy American Certificate

- (a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.
- (2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".
- (3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).
- (4) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," and "foreign end product" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(b) Foreign End Products:

Line item no.	Country of origin	Exceeds 55% domestic content? (yes/no)

52.229-11: Tax on Certain Foreign Procurements—Notice and Representation

- (d)(1) ☐ is; ☐ is not a foreign person
- (d)(2) ☐ a full exemption; ☐ a partial or no exemption

52.240-90: Security Prohibitions and Exclusions Representations and Certifications

(End of provisions)

APPLICABLE CLAUSES INCORPORATED BY REFERENCE

- 52.203-17: Contractor Employee Whistleblower Rights
- 52.203-19: Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements
- 52.204-13: System for Award Management—Maintenance

- 52.204-91: Contractor identification
- 52.209-10: Prohibition on Contracting with Inverted Domestic Corporations
- 52.212-4: Terms and Conditions—Commercial Products and Commercial Services.
- 52.212-4 with Alt I: Contract Terms and Conditions—Commercial Products and Commercial Services.
- 52.219-4: Notice of Price Evaluation Preference for HUBZone Small Business Concerns
- 52.219-6: Notice of Total Small Business Set-Aside
- 52.219-6 with Alt I: Notice of Total Small Business Set-Aside, with Alternate I
- 52.222-3: Convict Labor
- 52.222-19: Child Labor—Cooperation with Authorities and Remedies
- 52.222-36: Equal Opportunity for Workers with Disabilities
- 52.222-36 with Alt I: Equal Opportunity for Workers with Disabilities, with Alternate I
- Notice: The following term(s) of this clause are waived for this contract: _____

Employee class	Monetary wage – fringe benefits

- 52.222-50: Combating Trafficking in Persons
- 52.222-50 with Alt I: Combating Trafficking in Persons, with its Alternate I
- 52.223-23: Sustainable Products
- 52.225-1: Buy American-Supplies
- 52.225-1 with Alt I: Buy American-Supplies, with Alternate I
- 52.226-8: Encouraging Contractor Policies to Ban Text Messaging While Driving
- 52.229-12: Tax on Certain Foreign Procurements
- 52.232-29: Terms for Financing of Commercial Products and Commercial Services
- 52.232-30: Installment Payments of Commercial Products and Commercial Services
- 52.232-33: Payment by Electronic Funds Transfer—System for Award Management
- 52.232-36: Payment by Third Party
- 52.232-40: Providing Accelerated Payments to Small Business Subcontractors
- 52.233-3: Protest After Award
- 52.233-4: Applicable Law for Breach of Contract Claim
- 52.240-91: Security Prohibitions and Exclusions
- 52.240-93: Basic Safeguarding of Covered Contractor Information Systems
- 52.244-6: Subcontracts for Commercial Products and Commercial Services

(End of clauses)